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MUTUAL NONDISCLOSURE AGREEMENT

This Mutual Nondisclosure Agreement ("**Agreement**") is made as of _____[Date] (the "**Effective Date**"), by and between Earth Breeze, Inc., a Delaware corporation located at 500 Westover Drive, #14160, Sanford, North Carolina, United States, 27330 ("**Earth Breeze**"), and _____[Entity Name], a _____[State] _____[Entity Type] located at _____[Address] ("**Company**"). Earth Breeze and Company are collectively referred to herein as the "**Parties**" and individually as a "**Party**".

The Parties acknowledge that, in connection with the purpose described in Exhibit A attached hereto and incorporated herein by this reference (the "**Purpose**"), they may receive and/or have access to information and materials concerning the other Party's business, plans, products and technical data which is confidential and of substantial value to the Disclosing Party (as defined in Section 1 below) that would be impaired if the information were disclosed to third parties or used by the Receiving Party (as defined in Section 1 below) for any reason other than the Purpose.

NOW THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, receipt of which is hereby acknowledged, the Parties agree as follows:

1. **Confidential Information.** For the purposes of this Agreement, "**Confidential Information**" shall mean information disclosed by a Party (the "**Disclosing Party**") to the other Party (the "**Receiving Party**"), including, but not limited to, information related to the Disclosing Party's finances, marketing, sales and business plans, analyses, forecasts and projections, customer and distributor lists and related information, customer agreements, suppliers, vendors and independent contractors, products, services, inventions and trade secrets, know-how, formulae, compositions, processes, product specifications, sketches, drawings, samples, past, current and planned research and development, current and planned manufacturing and/or distribution methods and processes, internal management tools and systems, pricing information, and costing policies and methods, which (a) is marked as "confidential" at the time of disclosure, (b) is unmarked (e.g., disclosed orally or visually) but is identified as confidential at the time of disclosure, or (c) due to the nature of the information or the circumstances of disclosure, would be understood by a reasonable person to be confidential. This Agreement shall not require either Party to disclose any of its Confidential Information.

2. **Receiving Party's Use of Confidential Information.** The Receiving Party shall use the Confidential Information solely in connection with the Purpose and shall not use the information for any other purpose or reason. The Receiving Party may not disclose or permit access to the Confidential Information to any third party. The Receiving Party shall not use the Confidential Information for the benefit of the Receiving Party or any other party, and may only use the Confidential Information in furtherance of the Purpose. The Receiving Party shall ensure that its affiliates, affiliated companies, subsidiaries, and their agents, representatives, employees, and (sub)contractors fully comply with the terms and obligations

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of the Receiving Party under this Agreement. The Receiving Party shall be liable for any violations of this Agreement, including any violations by its affiliates, affiliated companies, subsidiaries, and their agents, representatives, employees, and (sub)contractors.

3. **Disclosure of Confidential Information.** The Receiving Party may disclose the Confidential Information only to its employees, agents, representatives, and (sub)contractors who need to know such Confidential Information in connection with the Purpose. Prior to any such disclosure or access, each such person shall be informed of the confidential nature of the Confidential Information and shall agree in writing to be bound by the terms of this Agreement. The Receiving Party shall hold the Confidential Information in strict confidence and safeguard the information from unauthorized access or dissemination using the same degree of care it uses to protect its most sensitive information, but in no event less than a reasonable degree of care. The Receiving Party shall remain responsible for breaches of this Agreement arising from the acts of all persons and entities to whom it discloses the Confidential Information. If the Receiving Party discovers that any of the Disclosing Party's Confidential Information has been used, disseminated or published in violation of this Agreement, it will immediately notify the Disclosing Party, take commercially reasonable actions to minimize the impact of the use, dissemination or publication, and take any necessary steps to prevent any further breach of this Agreement.

4. **Notice of Compelled Disclosure.** In the event that the Receiving Party or any person to whom the Receiving Party or its representatives transmit or have transmitted Confidential Information become legally compelled (by oral questions, interrogatories, requests for information or documents, subpoenas, civil investigative demands, or otherwise) to disclose any such Confidential Information, the Receiving Party shall provide the Disclosing Party with prompt written notice so that the Disclosing Party may seek a protective order or other appropriate remedy, or both, or waive compliance with the provisions of this Agreement. In the event that the Disclosing Party is unable to obtain a protective order or other appropriate remedy, or if it so directs the Receiving Party, the Receiving Party shall furnish only that portion of the Confidential Information that the Receiving Party is advised by written opinion of its counsel is legally required to be furnished by it and shall exercise its reasonable best efforts to obtain reliable assurance that confidential treatment shall be accorded such Confidential Information.

5. **Exceptions to Confidential Information.** Confidential Information shall not include information that the Receiving Party can establish by documentary or other competent evidence (a) is or becomes generally available to the public through no fault of the Receiving Party; (b) was rightfully in the possession of the Receiving Party prior to its receipt from the Disclosing Party; (c) is rightfully received by or becomes known to the Receiving Party from a source other than the Disclosing Party without, to the best of the Receiving Party's knowledge, any breach of confidentiality owed to the Disclosing Party; (d) is disclosed with the prior written consent of the Disclosing Party; or (e) is independently developed by the Receiving Party without any use of the Disclosing Party's Confidential Information.

6. **Term.** This Agreement shall commence as of the Effective Date and continue for two (2) years following the later of: (a) the completion of the Disclosing Party's dissemination of

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Confidential Information to the Receiving Party; (b) the completion of the transactions contemplated by the Purpose; or (c) the termination of discussions regarding the Purpose.

7. **Return of Confidential Information.** At any time upon request by the Disclosing Party or within ten (10) days following the expiration or earlier termination of this Agreement, (a) the Receiving Party shall promptly return or, at the Disclosing Party's option, destroy all Confidential Information (including all copies) in the Receiving Party's possession or control, and (b) an authorized representative of the Receiving Party shall certify that all such Confidential Information has been returned or destroyed.

8. **No License.** All Confidential Information will remain the exclusive property of the Disclosing Party. The Receiving Party acknowledges and agrees that no right or license is granted to the Receiving Party in relation to any part of the Disclosing Party's Confidential Information. This Agreement does not grant any intellectual property rights or licenses (express or implied), including without limitation rights to patents, patent applications, trademarks, copyright, or trade secrets, to the Receiving Party. The Receiving Party shall not remove, overprint, alter, obscure or deface any element or notice of copyright or trademark, logo, legend or other notice of ownership from any of the Disclosing Party's Confidential Information.

9. **Warranty.** The Disclosing Party warrants that it has the right to make the disclosures under this Agreement. NO OTHER WARRANTIES ARE MADE BY EITHER PARTY UNDER THIS AGREEMENT WITH RESPECT TO THE CONFIDENTIAL INFORMATION, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND NONINFRINGEMENT. ANY INFORMATION EXCHANGED UNDER THIS AGREEMENT IS PROVIDED "AS IS." The Disclosing Party shall have no liability whatsoever to the Receiving Party relating to or arising from the Receiving Party's use of the Confidential Information or from any errors or omissions in the Confidential Information, or from any business decisions made by the Receiving Party in reliance on any Confidential Information.

10. **No Obligation; No Agency or Partnership.** Each Party agrees that neither the holding of discussions between the Parties nor the exchange of Confidential Information hereunder shall be construed as an obligation to enter into any other business arrangement or agreement with the other Party, and no such obligation shall exist until such time that a separate, written agreement has been executed by authorized representatives of both Parties. This Agreement does not create any agency, partnership or joint venture relationship between the Parties.

11. **Governing Law.** This Agreement shall be construed in accordance with the laws of the state of Delaware excluding its conflict of law provisions.

12. **Equitable Relief.** The Receiving Party acknowledges and agrees that in the event of a breach or threatened breach of any provision of this Agreement, the Disclosing Party may suffer irreparable harm for which it may not have an adequate remedy at law. Therefore, the Disclosing Party shall be entitled to seek to enforce any provision of this Agreement by temporary or permanent injunctive or mandatory relief obtained in any court, without the

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necessity of posting any bond or other security and without prejudice or diminution of any other rights or remedies which may be available at law or in equity.

13. **Export Regulations.** The Receiving Party will not transfer any Confidential Information received hereunder to any country prohibited from obtaining such information by the United States Department of Commerce Export Administration Regulations without first obtaining a validated export license.

14. **Severability.** If any provision of this Agreement is held invalid under any applicable law, such provision shall be limited or eliminated to the minimum extent necessary, and all other provisions of this Agreement shall remain in full force and effect.

15. **Waiver.** No waiver of any term or right in this Agreement shall be effective unless in writing, signed by an authorized representative of the waiving Party. The failure of either Party to enforce any provision of this Agreement shall not be construed as a waiver or modification of such provision, or impairment of its right to enforce such provision thereafter.

16. **Entire Agreement; Modifications.** This Agreement is the entire agreement between the Parties with respect to the subject matter hereof and supersedes any prior agreement or communications between the Parties, whether written or oral. This Agreement may be modified only by a written amendment signed by authorized representatives of both Parties.

[*Signature Page Follows*]

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AGREED TO AND ACCEPTED BY:

EARTH BREEZE, INC.

By: _____
Its: _____
Date: _____

_____[Full Legal Name of Company/Individual]

By: _____
Its: _____
Date: _____

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Exhibit A

Purpose

[Describe in sufficient detail the underlying relationship, exchange of property, or exchange of information forming the basis for the Agreement.]